Application No. 14247/88
by Ernest James CROSSLEY
against the United Kingdom

The European Commission of Human Rights sitting in private on 4 December 1989, the following members being present:

MM. C.A. NØRGAARD, President
J.A. FROWEIN
S. TRECHSEL
G. SPERDUTI
E. BUSUTTIL
A.S. GÖZÜBÜYÜK
A. WEITZEL
J.C. SOYER
H.G. SCHERMERS
H. DANELIUS
G. BATLINER
Sir Basil HALL
MM. F. MARTINEZ
C.L. ROZAKIS
Mrs. J. LIDDY
Mr. L. LOUCAIDES

Mr. H.C. KRÜGER, Secretary to the Commission

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 10 June 1988 by Ernest James CROSSLEY against the United Kingdom and registered on 26 September 1988 under file No. 14247/88;

Having regard to the report provided for in Rule 40 of the Rules of Procedure of the Commission;

Having deliberated;

Decides as follows:

THE FACTS

The applicant is a British citizen born in 1924 and resident in Ipswich. The facts as submitted by the applicant may be summarised as follows.

The applicant's daughter S was born on 5 March 1970. On 28 June 1979, the Hereford and Worcester County Council (the "Council") successfully applied for a care order in respect of S, who is mentally-handicapped, on the ground that the applicant was not allowing her to receive the treatment and educational assessment considered necessary. One major point of disagreement between the applicant and the Council was the applicant's desire for S to receive mainstream schooling and the Council's belief that S required special schooling.

Following the care order, S was placed as a week-day boarder in a residential special school. On 10 January 1983, S was admitted as a full time boarder to Ryes school, a special residential school. At or about this time the applicant was separated from his wife, who retained custody of the other two children of the family.

The applicant was initially allowed weekly access to S at Ryes school. Following concern at the effect of these visits, the Social Services of Essex County Council (the "local authority") who had taken

over responsibility for supervision of the care order, reduced access to one per month in April 1985, pending advice from a consultant child psychiatrist. The applicant was invited to see the consultant with S for a psychiatric assessment to be made on the subject of continued access but the applicant declined the invitation. No further access visit took place until May 1986 when the applicant wrote to the school informing them of his intention to visit the next Sunday. When the applicant arrived however, he was told S was not available.

By letter dated 10 August 1987 to the local authority, the applicant's solicitors requested access to S for the applicant. On 20 November 1987, the applicant was served with a Notice of Termination of Access Order and the applicant applied to the Court pursuant to Section 12 B of the Child Care Act 1985 to review this decision. A guardian ad litem was appointed to represent S. In his report dated 12 February 1988, with supplement dated 23 February 1988, the guardian reported that the applicant had not seen S for 2 1/2 years and during the preceding 2 1/2 years there had been a deterioration in communication between the applicant and the school and an increasing concern by the school with the applicant's inappropriate behaviour with S and S's marked negative reaction to his visits. He concluded that it was not in S's interests to see her father.

On 26 February 1988, the magistrate's court refused the applicant access to S.

The care order in force in relation to S expired on 5 March 1988 when she reached 18 years of age. By letter dated 25 May 1988 the applicant approached the local authority concerning access. By letter dated 15 June 1988, the local authority agreed that S was no longer in their care and the decision refusing access was no longer in force. The local authority stated however that the Social Services Department considered that it was not in S's interests for the applicant to have access and that they were not prepared to make any arrangements for access or to allow the applicant on their premises for the purpose of seeing S.

It appears that S has remained at the Ryes school since the expiry of the care order and that there are plans to introduce her gradually to a hostel for mentally handicapped young adults.

COMPLAINTS

The applicant complains of interference with his family life in that his daughter was institutionalised against his judgment and that she was placed in care, access restricted and finally terminated. He also complains of being prevented from seeing her since her 18th birthday when the care order expired. He further complains of being denied a fair hearing in respect of the proceedings before the magistrate's court on 26 February 1988. The applicant invokes Articles 6, 8 and 11 of the Convention.

PROCEEDINGS BEFORE THE COMMISSION

The application was introduced on 10 June 1988 and registered on 26 September 1988.

The Commission decided on 13 April 1989 to bring the application to the notice of the respondent Government and invite them to submit written observations on the admissibility and merits of the applicant's complaints.

The Government submitted observations on 11 August 1989. By letter dated 22 September 1989, the applicant stated that he withdrew his application since he intended to apply for judicial review in respect of the local authority's decision to refuse him access to his daughter. He also expressed the intention of renewing his application

if necessary following the exhaustion of domestic remedies.

REASONS FOR THE DECISION

The Commission notes that the applicant intends to institute domestic proceedings in respect of his complaints and wishes meanwhile to withdraw his application. The Commission finds no reasons of a general character affecting the observance of the Convention which necessitate a further examination of the case.

For these reasons, the Commission

DECIDES TO STRIKE THE APPLICATION OFF THE LIST OF CASES.

Secretary to the Commission — President of the Commission

(H.C. KRÜGER) — (C.A. NØRGAARD)